Cbi vs Kishan Sresth And Ors on 17 May, 2024

IN THE COURT OF MS. ANJU BAJAJ CHANDNA
PRINCIPAL DISTRICT & SESSIONS JUDGE-CUM-SPECIAL
JUDGE (PC ACT) CBI, ROUSE AVENUE DISTRICT
COURTS, NEW DELHI

CNR No. DLCT11-000395-2022
CBI No.39/2022
CBI Vs. Kishan Sresth & Ors.
RC No. 050/2021/S-0010/CBI/SC-II/New Delhi
U/s. 302/34 IPC

Central Bureau of Investigation
vs
1. Kishan Sresth (on bail)
S/o Tejman
R/o H. No.28, Parjapati Mohalla Vasant Gaon
Vasant Vihar, New Delhi.

2. Ganpat @ Kunal (In Judicial Custody)
S/o Niranjan
R/o H. No.9717, Gali No.08, Multani Dhanda,
Paharganj, Delhi.

3. Arun @ Mandva (In Judicial Custody)
S/o Jasvir
R/o VPO Khadwali, Rohtak
Haryana.

4. Akash @ Hanny (on bail)
S/o Mohan Lal
R/o Flat No.25, Type-2, Lady Harding Hospital
Staff Quarter, New Delhi.

Date of FIR : 14.05.2021
Date of filing of charge-sheet : 23.12.2021

Date of cognizance : 23.12.2021
Date of framing of charge : 11.07.2023
Arguments concluded on : 10.05.2024
Date of Judgment : 17.05.2024
Appearances
For prosecution : Sh. Amit Kumar, Ld. Senior Public
Prosecutor for CBI.
For accused : Sh. Aditya Singh Deshwal, Legal Aid Counsel

for accused no.1 to 3.
Sh. Bharat Dubey, Ld. Counsel for accused no.4.

JUDGMENT

1. The accused persons Kishan Sresth, Ganpat @ Kunal, Arun @ Mandva, Akash @ Hanny have been sent for trial for the offences punishable under Section 302/34 IPC.

FACTUAL BACKGROUND :-

2. The case of the prosecution in brief is that a case FIR no. 243/2021 under Section 302/34 IPC was registered at police station Hari Nagar against the accused persons in the matter of death of prisoner Srikant Rama Swamy @ Appu on 14.05.2021. The FIR was registered on the basis of complaint of Jail Warder Lalit.

3. On the direction of High Court of Delhi vide its order dated 20.07.2021, the investigation of the above mentioned case FIR was transferred to CBI and accordingly RC 0502021S0010 was registered. The accused persons have been named in the CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 2 of 79 First Information Report. The deceased Srikant Rama Swamy @ Appu was lodged in Ward No.2, Jail No.2, Tihar Jail, New Delhi and accused persons were also lodged therein. The deceased was a drug addict and a notorious person who used to threaten and harm other jail inmates and used to demand money from them. Accused Arun @ Mandva was lodged in barrack no.4, ward no.2 along with Srikant Rama Swamy @ Appu, where deceased used to harass and manhandle Arun @ Mandva. The deceased was also having tussle with other accused persons namely Akash @ Hanny, Ganpat @ Kunal and Kishan Sresth. On 13.05.2021 there were heated arguments between Srikant Rama Swamy @ Appu and accused Akash @ Hanny, Ganpat, Arun @ Mandva and other prisoner namely Bacha. Another prisoner Vikas @ Aloo of Ward No.1 was also present there and he was friend to deceased Srikant Rama Swamy. The accused Arun @ Mandva moved an application for shifting his barrack on 13.05.2021 for the reasons that Srikant Ramaswamy used to beat him. The Deputy Superintendent (Jail) Sh.R. N. Meena shifted Arun from Barrack No.4 to barrack no.6 and he also warned Srikant Rama Swamy with serious consequences. The Deputy Superintendent also slapped Vikas @ Aloo for being present in Ward no.2.

4. It is further alleged by the prosecution that sports items including cricket bats were lying in guard room of ward no.2, Jail no.2, Tihar Jail and on 13.05.2021 accused Arun and Akash had taken two cricket bats from there and concealed the same in the ward. On 14.05.2021 the barracks were opened at about 6.30 am and initially there was an argument between Srikant Rama Swamy and Arun near the common washroom of the Ward. At CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 3 of 79 about 7.00 a.m., the accused persons namely Kishan Sresth, Ganpat @ Kunal, Arun @ Mandva and Akash @ Hanny entered barrack no.4 and attacked Srikant Rama Swamy with cricket bats. Srikant Rama Swamy also assaulted Arun with an iron patti due to which Arun was bleeding from his head. On hearing the noise, warder Lalit and warder Praveen (on duty) rushed to barrack no.4 and found Akash and Arun having cricket bats in their hands and beating

Srikant Rama Swamy while Kishan Sresth and Ganpat were catching hold of Srikant Rama Swamy. The prisoners were separated and Arun was taken to Jail dispensary for treatment while Srikant refused to take any medical treatment at that time and preferred to take rest. The bats allegedly used by the accused persons were taken by Jail officials and subsequently handed over to the police. At about 9.00 a.m., Assistant Superintendent Sudama Mehto, Head Warder Krishan and Warder Lalit went to barrack no.4 and searched the bed of Srikant Rama Swamy where they could find one small grey color mobile phone and one iron patti and same were seized. At that time, Srikant Rama Swamy who was taking bath in the attached bathroom, complained of body pain and nervousness and was immediately rushed to the jail dispensary on a wheel chair, however, he became unconscious on the way. Srikant Rama Swamy was referred and taken to Safdarjung hospital in an ambulance where treatment was given to him vide MLC No. 00138048 but he could not survive and died at 11.50 hours. The postmortem on the body of deceased Srikant Rama Swamy was conducted on 15.05.2021 and as per the report, death was due to shock as a result of multiple injuries to head, both the upper CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 4 of 79 limbs and both the lower limbs consequent to blunt force impact. The injuries were termed as ante-mortem and fresh in nature. A medical board was also constituted at All India Institute of Medical Sciences, New Delhi for opinion on injuries and the medical board opined that cause of death in this case was shock as a result of multiple external and internal injuries.

5. During investigation, the blood samples from scene of crime and blood available on two cricket bats along with other exhibits were sent for DNA examination and it was confirmed that the blood of deceased was present on the exhibits.

6. It has been contended that accused persons namely Kishan Sresth, Ganpat @ Kunal, Arun @ Mandva, Akash @ Hanny in furtherance of their common intention, committed murder of Srikant Rama Swamy @ Appu.

7. The cognizance on the charge-sheet was taken for the offence punishable under Section 302/34 IPC and the case was committed for trial by Ld. ACMM.

CHARGE:-

8. On 11.07.2023, all the four accused persons were charged for having committed an offence punishable under Section 302 IPC read with Section 34 IPC to which all of them have pleaded not guilty and claimed trial.

PROSECUTION EVIDENCE:-

9. The prosecution examined 33 witnesses during the trial. The sum and substance of prosecution evidence is as follows:-

CBI vs Kishan Sresth & Ors.

> CBI/39/2022 Page no. 5 of 79 PW-1 Lalit Kumar was deployed as head warder of ward no.2, jail no.2, Tihar Jail, Delhi. He deposed that on 14.05.2021 at about 6.00 a.m., prisoners were released by warder Naveen from ward no.1 as per routine. At about 7.00 a.m., on hearing the noise coming from barrack no.4, he immediately along with warder Praveen and Munshi Sunil rushed there and found Arun and Aakash having cricket bats in their hands and were beating Srikant @ Appu while Ganpat and Kishan had caught hold of Srikant.

The accused were also shouting that they would kill Srikant. PW-1 with the help of Parveen and Sunil separated all the five under trial prisoners and meanwhile accused persons also started to hit each other but they were controlled. Accused Arun was bleeding from the head and was taken to Jail dispensary for treatment. Srikant declined to have any medical assistance. Accused Arun narrated to PW-1 that he had taken the cricket bats from guard room on 13.05.2021 and also disclosed that Srikant had misbehaved with him near the washroom. PW-1 further deposed that at about 9.00 a.m, he along with Assistant Superintendent Sudama Mehto and Chakkar Chief Warder Krishan came to the barrack no.4 to check on Srikant. At that time, he was taking bath in attached bathroom. On taking search at his place, iron patti and mobile phone were recovered. Srikant informed Sudama Mehto that he was not feeling well and requested to be taken to jail dispensary. Srikant was taken to jail dispensary on wheel chair where he was checked by the CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 6 of 79 doctor and was referred to Safdarjung Hospital. There was no external and visible injury on the body of Srikant. Srikant was taken to Safdarjung Hospital and later the news came about his death. The statement of PW-1 was recorded by the police as well as by the Magistrate. His statement was recorded by local police vide Ex.PW1/A. PW-1 also identified his signatures on seizure memos Ex.PW1/B, Ex.PW1/C, Ex.PW1/D, Ex.PW1/E and on arrest memos Ex.PW1/F, Ex.PW1/G, Ex.PW1/H and Ex.PW1/J. The witness also identified the broken wooden bats Ex.P-1 and Ex.P-2. The witness also identified the exhibits lifted from the crime spot as well as bedsheet of deceased Srikant Ramaswamy and clothes (T-shirt and Lower) of Arun. The statement of PW-1 was also recorded by CBI officer.

During cross examination, PW-1 deposed that CCTV footage of any area was not checked or scanned relating to the incident or pertaining to taking out of cricket bats from the guard room. The pieces of bats were taken from the accused and kept in the control room and later handed over to the police. The rukka / endorsement was prepared in the presence of this witness. The suggestion has been denied that no bats or pieces were recovered from the accused persons or that entire story regarding use of bats was fabricated. PW-1 along with Sunil and Warder Parveen intervened to separate the accused and deceased. The suggestion has been denied that they were not capable to handle the accused persons and the deceased. PW-1 is CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 7 of 79 not aware if Srikant was having tendency to fight or for this reason he was transferred from previous jail to jail no.2. PW-1 has no knowledge that on 13.05.2021 Srikant quarreled and scuffled with deputy Superintendent R. N. Meena and Srikant was beaten up by Jail staff on the directions of R. N. Meena. The cricket bats / pieces were sealed by the IO. PW-1 does not recollect if IO had prepared sketch of the cricket bats / pieces. The suggestion has been denied that

cricket bats / pieces were not seized or that same have been planted by deputy Superintendent R. N. Meena. PW-1 admitted that when they went to barrack no.4, deceased Srikant was taking bath and was not wearing any clothes. He admitted that there was no visible injury on his body and that he helped him to wear the clothes. He does not recollect whether any injury sheet was prepared in the dispensary in relation to Srikant. He admitted that register is maintained in the Jail if any sport article is issued and entries are made in the register. According to the witness, sports articles are secured items and they remained in the custody of chakkar chief and cannot be unauthorisedly procured by any under trial prisoner (UTP). PW-1 has denied the suggestion that Srikant was beaten up by jail employees on the direction of Assistant Superintendent and Deputy Superintendent firstly on 13.05.2021 and then on 14.05.2021. The suggestion has been denied that accused persons were not involved in the incident. PW-1 has no knowledge that on 13.05.2021, Srikant was beaten up and he even made a call CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 8 of 79 to his family and informed them about fear of death at the hands of jail authorities or that his sister and mother made a complaint to this effect. PW-1 is not aware if mother of Srikant filed a writ petition in the High Court against jail authorities for concealment of material facts or that matter was transferred to CBI with the orders of High Court. The suggestion has been denied that deceased was assaulted at the instance of jail authorities due to which he succumbed to the injuries or that deceased used to insult the jail employees. PW-1 has further denied the suggestion that deceased was involved in drug trafficking inside the jail. PW-1 has denied the suggestion that he was not present at the time of incident or that he is a planted witness or that he has not participated in the investigation. PW-1 further denied that accused persons are innocent and have been falsely implicated.

PW-2 Sub Inspector Pushpa was posted as Duty Officer at PS Hari Nagar on 14.05.2021. At about 2.30 p.m on the basis of information received from control room, she recorded general diary vide Ex.PW2/A and Ex.PW2/B. During cross examination, PW-2 stated that entries were made in the computer by her and she had given print out to the IO along with certificate under Section 65 B Evidence Act. The original certificates under Section 65 B were produced by the witness vide Ex.PW2/C. She denied the suggestion that she prepared the certificates on her own without getting it forwarded by the SHO or that same were CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 9 of 79 not prepared on the same day or that same were prepared subsequently.

PW-3 Sumit Balyan was posted as Warder at Jail no.2, Tihar Jail on 13.05.2021. At about 15.30 hours, UTP Arun and two other UTPs came to him and requested to change their barracks as UTP Srikant @ Appu used to harass, beat and threaten them. The application was moved jointly by UTPs, Arun, Ganpat and third one and the matter was brought to the knowledge of Deputy Superintendent R. N. Meena and UTPs were produced before him. The change in the barracks was ordered by Deputy Superintendent R. N. Meena from barrack no.4 to barrack no.6. All three were shifted to barrack no.6. Also the search was conducted in the barrack no.4 of ward no.2 along with other jail officials but nothing incriminating could be found, however, during the search UTP Srikant @ Appu misbehaved with the members of the search team. At around 18.30 hours, during counting, Srikant

threatened to injure himself by rubbing his head on the wall. PW-2 apprised about this fact to Assistant Superintendent Munish who counseled Srikant @ Appu. According to PW-3, the barracks are checked at the time of closing the prisoners inside the barracks. On that day, two cricket bats and a carom board was lying in the guard room at about 7.30 p.m.. The witness identified his signatures on the joint application moved by UTPs Arun, Ganpat mark PW3/A. The statement of PW-3 was recorded by CBI during the investigation.

CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 10 of 79 During cross examination, PW-3 stated that on account of misbehaviour by inmates punishment tickets are issued. In his presence, statement of any other inmate was not recorded nor any CCTV footage were checked. He has no knowledge if punishment ticket was issued to Srikant @ Appu for the reason that he was threatening to injure himself. The suggestion has been denied that on 13.05.2021, Srikant was assaulted by jail officers on account of misbehavior or that he got injuries on his forehead. The witness has identified the Barrack Bandi register Mark PW3/B but entries thereof are not in his hand. According to PW-3, accused Ganpat might not have moved any application for change of Barrack as he was already in Barrack no.6. However, the suggestion has been denied that accused Arun did not move any application or that he orally requested for change of ward. PW-3 has not seen Srikant taking drugs but he heard about this fact from Jail staff. PW-3 is not aware of any jail rule whereby drug addict has to be isolated. The suggestion has been denied that jail staff was negligent and failed to protect the life and liberty of inmate. In the year 2021, statement was recorded by CBI. No statement was recorded by investigating officer of PS Hari Nagar or by Magistrate. The witness admitted that there were CCTV cameras at the gate linking jail no.1 and 2, court mauka, chakkar, opening gates of wards, canteen, dispensary, factory and langar etc. Also CCTVs cameras were inside the barrack and in the open ground outside the barrack. Installation of CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 11 of 79 CCTV cameras started in 2021 but the witness has no certainty as to how many cameras were installed at the relevant time and how much area was covered. However, CCTV camera on the gate linking jail no.2 and chakkar was existing on the relevant time. He could not say as to whether CCTV cameras were installed inside barrack no.4. However, admitted that cameras were installed in the ward. PW-3 was on leave on 14.05.2021 and was not present inside the jail. The duty register is maintained with respect to the warders and also four registers are maintained at the guard room about movement in the jail which are OPD register, departure and arrival register, barrack bandi register and rough copy for court dates, mulakat JC PC etc. According to PW-3, deceased Srikant used to fight frequently with jail staff and several jail punishment tickets were issued in his name. The suggestion is denied that Srikant @ Appu was beaten by Jail staff at the instance of senior officer on account of misbehavior on 13.05.2021.

PW-4 Kripal Singh was on duty as Incharge, Assistant Superintendent at Jail No.2, Ward no.3 on 14.05.2021. PW-4 deposed that while he was taking round prior to 7.00 a.m, he heard some screams from ward no.2. It was informed that there has been fight between Srikant and Arun. PW-4 went inside the ward, barrack no.4 and asked Srikant if he had any injury and required any medical aid to which he declined and said that he was doing well. There was no visible injury on his body. The

information CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 12 of 79 was given to Assistant Superintendent Sudama Mehto about the incident. UTP Arun was taken to dispensary and later on was lodged at Ward No.3. The statement of this witness was recorded by CBI. During cross examination, PW-4 admitted that after the fight Srikant Ramaswamy was appearing fine. Statement of PW-4 was not recorded by the Magistrate or by the police officer on the date of incident. PW-4 has no knowledge if any internal enquiry was conducted by the jail authorities. PW-4 denied the suggestion that he along with Krishan Kumar and other jail employees went to barrack of Srikant armed with dandas and assaulted him while he was taking bath in naked condition due to which he collapsed. PW-4 denied the suggestion that he is deposing falsely in order to save his fellow employees. It is admitted that Srikant used to pick up fights frequently with jail staff and other inmates. PW- 4 has no knowledge if Srikant used to take drugs. PW-4 admitted that there are CCTV cameras on all the wards for recording every moment from chakkar to ward or ward to chakkar or to dispensary.

PW-5 Dr. Nirmal Vashistha, was posted at dispensary of Central Jail No.2, Tihar Jail on 13.05.2021 being on night duty from 8.00 p.m. (13.05.2021) to 8.00 a.m. (14.05.2021). PW-5 has stated that accused Arun was brought with sharp cut injury on his left side of head and was bleeding. PW-5 gave first aid and on finding the wound about 5 cm, stapled the skin and had done the dressing. UTP Arun had disclosed to PW-5 that he was CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 13 of 79 attacked by jail inmates. The night duty report book has been identified as Ex.PW5/A. The statement was recorded by CBI officer of PW-5. During cross examination, PW-5 deposed that inmate was brought with fresh injury on 14.05.2021.

PW-6 Dr.Vikram Pratihast was also posted at Jail dispensary, Jail no.2. His duty timings were 8.00 a.m. to 2.00 p.m. On 14.05.2021 at about 9.15 a.m., Srikant was brought to Jail dispensary on wheel chair in an unconscious state. On examination, his vitals were found stable. PW-6 stated that he noticed multiple bruises on bilateral limbs and multiple horizontal linear cut marks on left forearm and head. He gave primary treatment and referred him to Safdarjung Hospital for further management. PW-6 accompanied Srikant to Safdarjung Hospital in Ambulance and got him admitted in emergency. Certified copy of night duty report has been identified by the witness as Ex.PW6/A and on the referral slip Ex.PW6/B. During cross examination, PW-6 admitted that when Srikant was brought his heart sound was normal as well as his blood pressure. His pupils were reacting to light. PW- 6 further admitted that if proper medical treatment was given to Srikant in time he would have survived. The suggestion has been denied that time 9.32 a.m was subsequently manipulated on the referral slip. The register was not available in the ambulance whereby Srikant was CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 14 of 79 taken to Safdarjung hospital, however, oxygen facility was available along with a ward boy. Examination of Srikant was done by emergency doctor on duty at Sardarjung Hospital but not in the presence of the witness. He handed over Srikant to Safdarjung Hospital while he was unconscious. PW-6 denied to be deposing falsely to save the jail employees or that he has not correctly recorded the facts in the medical dispensary register. PW-6 further admitted that

register is brought along with the patient to the dispensary where name of the prisoner and his parentage is written and also about the complaint he was having about his health. The register was produced and identified by the witness which was brought along with Srikant by the Warder.

PW-7 Sanjay Kumar is a photographer. On the request of SI Kavish Lakra of Police Station Hari Nagar, PW-7 went to Safdarjung Hospital Mortuary for taking photographs of postmortem proceedings. Photographs have been identified as Ex.PW7/A along with certificate under Section 65 B Evidence Act Ex.PW7/B. The CD containing videography of postmortem was also produced and identified by the witness.

PW-8 ACP Mahesh Kumar, on the request of Investigating Officer of PS Hari Nagar reached the place of incident and prepared scaled site plan Ex.PW8/A. During cross examination, PW-8 deposed that he prepared the site plan on the pointing out of the IO and no eye witness was CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 15 of 79 present at the spot. He denied the suggestion that site plan has not been prepared correctly. The CCTV cameras were not there as otherwise that would be reflected in the site plan.

PW-9 HC Jitender was posted as constable at PS Hari Nagar when the information about the incident was received. This witness accompanied SI Kavish Lakra to Jail no.2, Tihar Jail and deposed about seizure memos prepared in his presence relating to pointing out of blood samples, cricket bats and blood stains from the place of occurrence. PW-9 also visited Safdarjung Hospital with SI Kavish Lakra during the collection of viscera and other samples through seizure memo. PW-9 is also the witness of recording of disclosure statement of accused persons and their arrest memos. Witness has proved the memo Ex.PW1/B as seizure memo of blood sample dated 14.05.2021, Ex.PW1/C seizure memo of blood stained bedsheet dated 14.05.2021 and Ex.PW1/D seizure memo of cricket bat dated 14.05.2021. Witness has also confirmed about seizure memo Ex.PW1/E relating to blood stained clothes, seizure memo of viscera Ex.PW9/A, pointing out of place of occurrence Ex.PW9/B, pointing out of place where cricket bats were hidden by accused Ex.PW9/C, disclosure statement of accused persons Ex.PW9/D, Ex.PW9/E, Ex.PW9/F and Ex.PW9/G. The arrest memos of the accused persons have also been proved as Ex.PW1/F, Ex.PW1/G, Ex.PW1/H and Ex.PW1/J. The exhibits were produced in the court during CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 16 of 79 the examination of the witness and were identified by the witness.

During cross examination, PW-9 stated that SI Kavish Lakra had recorded the statement of few jail staff but he could not recollect their names. IO had lifted the blood with cotton gauze and similarly other seizures were made by the investigating officer. The writing work was done in the ward and in the office of Deputy Superintendent. The suggestion has been denied that no seizures were done in his presence or that he was not present at the spot. CCTV cameras were there in the jail. The witness has denied the suggestion that signatures of accused persons were taken on blank papers and later converted into disclosure statements.

PW-10 R.N. Meena, was posted as Deputy Superintendent, Jail No.2, Tihar Jail in the year 2021. During the month of May 2021, he was duty in the evening shift. On 13.05.2021, inmate Vikas Jain s/o Rattan Lal Jain and Arun @ Mandva came to him with the complaint against Appu (deceased) about threats, assault, harassment and extortion and that Appu was having knife and phone. The search was conducted upon Appu but nothing could be found. At the request of Arun and Vikas, their barrack was shifted from barrack no.4 to 6. It was also informed in the evening of 13.05.2021 that Appu had inflicted minor self injury and accordingly punishment ticket was issued. The witness received information about incident of fight on CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 17 of 79 14.05.2021 and accordingly he went to Central Jail No.2 and came to know about the death of Appu. The witness further stated that on 13.05.2021, Convict Vikas @ Aloo was found roaming in ward no.2 despite the fact that he was lodged in ward no.1 and he was confronted. The witness identified the attested copy of request letter of Vikas Jain and Arun Ex.PW10/A and Ex.PW3/A and also the attested copy of search report conducted on 13.05.2021 Ex.PW10/B. The punishment ticket issued to Srikant @ Appu (deceased) dated 13.05.2021 is Ex.PW10/D and Ex.PW10/E. During cross examination, PW-10 admitted that there were CCTV cameras installed at Jail no.1 and 2 and at court mauka. The CCTV cameras were also fitted in the wards, canteens, and dispensary and also in the guard room. The witness further stated that he is unable to tell at what places the cameras were installed and the places where cameras did not exist. The suggestion has been denied that CCTV cameras were installed in each ward and stated that he is not sure whether cameras were installed on the day of incident inside the barrack. PW-10 further admitted that deceased was a notorious criminal and various punishment tickets were issued against him. Deceased used to pick up fight with jail staff and other UTPs. On 13.05.2021, the search was conducted accompanied by Assistant Superintendent Manish Kumar and Ram Niwas and chief Head Warder Rajinder Kumar and during that time deceased Srikant had misbehaved with him and other jail CBI vs Kishan Sresth & Ors.

```
CBI/39/2022                                Page no. 18 of 79
        staff and resisted the search.         The suggestion has been
```

denied that deceased was assaulted by jail staff or that on 14.05.2021 the jail staff / search party had assaulted Srikant @ Appu on his instructions due to which Srikant received fatal injury. The witness has no knowledge that he was named in the PCR call made by convict Vikas or that sister of deceased filed a written complaint against him holding him responsible for the death of deceased. The witness has no knowledge that CCTV footage of the time, deceased was being taken to dispensary were preserved. The statement of the witness was recorded during internal departmental enquiry and Ld. Magistrate had also recorded his statement. The suggestion has been denied that complete CCTV footage existed showing beatings given to Appu by jail staff and in order to save jail staff, CCTV footages were not provided to the IO. On receipt of application from Arun, PW-10 felt it appropriate to change the barrack and not the ward. No action was taken against the deceased on the complaint of Arun. The suggestion has been denied that Arun never gave any application complaining about conduct of Srikant or about shifting of barrack. It is denied that application dated 13.05.2021 is ante-dated and manipulated by jail staff. The witness had given instructions to Assistant Superintendent Manish for taking into possession the weapon with which self injury was inflicted by the deceased but has no knowledge whether such weapon was CBI vs Kishan Sresth &

Ors.

CBI/39/2022 Page no. 19 of 79 seized. PW-10 has denied the suggestion that jail staff had assaulted deceased due to his misbehavior on 13.05.2021.

PW-11 Dr. Manoj Kumar, was on emergency duty at Safdarjung Hospital on 14.05.2021 when Srikant was brought in unconscious state. The witness has examined the parameters of the deceased and stated that blood pressure was not recordable and pulse was feeble. The patient's condition suddenly deteriorated and he collapsed. Despite high quality of CPR, patient could not be revived and declared dead after 45 minutes of CPR (three cycles). The MLC was prepared vide Ex.PW11/A. The paper was prepared about transfer of dead body to mortuary vide Ex.PW11/B, death report is Ex.PW11/C and emergency initial assessment card is Ex.PW11/D. The statement of this witness was recorded by CBI. During cross examination, PW-11 admitted that name of the attendant who brought the patient was not recorded in the MLC. The witness admitted having prepared the document Ex.PW11/DA and the same is in his handwriting. The witness has denied the suggestion that he has not properly recorded the facts in the document or that he has been completely negligent in handling the patient. Witness could not comment if the patient was alive when he was brought to the hospital or when he was taken to ER-4. The MLC was prepared by the witness after the CPR was over. The witness has further denied the suggestion that life of the patient could be saved or that his negligence was responsible for death of Srikant.

CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 20 of 79 PW-12 ASI Ramavtar was posted with Mobile Crime Team on 14.05.2021. He went to the spot of occurrence where he observed blood stains on the floor besides the bed of Srikant and blood stains on the bedsheet. The witness has proved crime visit report Ex.PW12/A. During cross examination, The witness deposed that along with him finger print expert and photographer were also there. After taking the photographs, CDs were prepared through computer and given to IO. No finger print was lifted from the spot and nor bat was produced before him for inspection or for lifting finger prints.

PW-13 Dr. Kapil Dev Mudgal deposed that on 10.06.2021, he received wooden box containing exhibits and he conducted chemical examination and has proved his report Ex.PW13/B. PW-14 Prince Chauhan was lodged in Jail no.2, ward no.2, barrack no.4 in the month of May 2021. There were 10-12 other inmates in the barrack including Srikant Rama Swamy (deceased). According to PW-1, Srikant was drug addict and used to misbehave with Jail administration and other prisoners and also used to snatch belongings of other inmates. On 13.05.2021, Srikant had a fight with Arun and also 2-3 days prior to this. A complaint was made by Arun to Jail authorities and thereafter the barrack of Arun was changed to barrack no.6. The witness further deposed that on 14.05.2021, barracks were opened between 6.00 a.m to 6.30 a.m and all the prisoners came out. While PW-14 was CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 21 of 79 doing exercise behind barrack no.6, he heard some commotion and visited barrack no.4 where he found lot of persons gathered there. He saw Arun beating Srikant with

bat and other inmates also gathered there who separated Appu and Arun. Arun was shouting that he would kill Srikant. Arun had received injuries and was taken to dispensary, while Srikant said that he was alright and would remain in the barrack on his bed. The barracks were closed by jail staff. At about 8.30 - 9.00 a.m., while Srikant was taking bath, he collapsed. The jail staff took him to dispensary on wheel chair. The information later on came that Appu had expired. The statement of PW-14 was recorded by CBI.

The witness was cross examined by Ld. Prosecutor during which he admitted that he can identify accused Aakash, Ganpat and Kishan Sresth as they were lodged in same jail. The witness denied having stated in his statement that Aakash was also having a bat or that Ganpat and Kishan Sresth were also with them. The witness declined to have stated that Srikant was got caught hold by Ganpat and Krishan Sresth and assaulted by Arun and Aakash by means of cricket bats. The witness admitted having stated that Assistant Superintendent and other warders came to barrack and searched the bed of Appu. The witness was confronted with the statement recorded under Section 161 Cr.P.C Ex.PW14/A and denied the suggestion to be deposing falsely in order to save his friends Akash, Ganpat and Kishan Sresth.

CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 22 of 79 During cross examination on behalf of accused, PW-14 admitted that CCTV have been installed in the barracks, wards and in the guard room. The witness has no knowledge if any altercation took place between Srikant and Jail Administration on 13.05.2021. The witness denied the suggestion that he has given incorrect statement with respect to Arun assaulting the deceased. The suggestion has been denied that Srikant was assaulting Arun and gave him injury.

PW-15 Dr. Vedant Kulshrestha, was posted as Assistant Professor with Department of Forensic Medicine and Toxicology, Vardhaman Mahavir Medical College, Safdarjung Hospital, New Delhi. On 15.05.2021 a medical board was constituted for conducting postmortem on the dead body of the deceased Srikant. The board consisted of PW-15 and Dr. M. K. Vahi and Dr.Sahil Khurana. PW-15 further deposed that during postmortem examination, he found 39 external injuries and few internal injuries caused by blunt force impact which included abrasions, contusions and few lacerations. The cause of death was shock as a result of multiple injuries sustained to head, both the upper and both the lower limbs consequent to blunt force impact. Injuries were antemortem in nature and were not caused by sharp weapon. The witness further stated that injuries could be caused by blunt object including a cricket bat. The report has been proved as Ex.PW15/A. CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 23 of 79 During cross examination, PW-15 deposed that no cricket bat was shown to them by the investigating agency The suggestion has been denied that abrasions are not possible by means of cricket bat. The injuries no.1, 2 and 3 were possible due to blunt force and could be inflicted by cricket bat. Fresh injury noted on record, meant injury sustained within the duration of few hours, but could not say fresh injury means injury sustained within six hours. The dead body was thoroughly examined during postmortem but no fracture or dislocation of bone was found. No x-ray on the body of the deceased was done. The witness admitted that at the time body

was brought for postmortem, injuries on exposed parts of the body was visible like on forearms, hands and wrist. The suggestion has been denied that postmortem report has been prepared at the instance of the IO.

PW-16 Shashi Bala Pahuja, Senior Scientific Officer, (Biology), FSL, Rohini examined the exhibits and prepared her detailed report Ex.PW16/A. The forwarding letter has been proved as Ex.PW16/B. The exhibits were produced and identified by the witness.

During cross examination, witness deposed that queries were mentioned in the forwarding letter for seeking opinion. After the detection of blood on exhibits , the process of DNA isolation is conducted. The suggestion has been denied that she has given incorrect report or that her report is inconclusive.

CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 24 of 79 PW-17 HC Satish was a part of the Mobile Crime Team and has taken photographs vide Ex.PW17/A. The certificate under Section 65B is proved as Ex.PW17/B. During cross examination, witness deposed that he has done three months course as crime photographer. The photographs were taken from digital camera.

PW-18 Pradeep Sharma has been posted as Deputy Superintendent Grade-I, Tihar Jail. The witness has deposed about the rules and procedures of the jail and about the postings of various officials / officers at the Jail. According to the witness, wards of the jail are looked after by head warder and warder. On 14.05.2021, Lalit was looking after the duty of head warder while Parveen was deployed as warder in ward no.2. The punishment tickets are issued to the prisoner and records are kept under the custody of superintendent of jail. For providing sports equipments or any other jail needs, items are sent to the main store of the Central Jail at jail no.1 and from there items are issued as per requirements. As per jail record, six cricket bats were issued at chakkar in jail no.2 from where the articles are sent to the different wards as per demand. The wards in the jail are under the supervision of Assistant Superintendent. With respect to R. N. Meena, Deputy Superintendent, PW-18 deposed that he was not on duty at the time of alleged incident. He is a strict type of officer and there is possibility that his involvement is named due to some personal enmity. The witness has provided the certified copies of documents as sought by investigating CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 25 of 79 officer along with forwarding letter Ex.PW18/A. The certified copies of the documents are Ex.PW18/B (colly) and Ex.PW18/C (colly).

The witness has deposed about production cum seizure memo dated 04.08.2021 Ex.PW18/D whereby he handed over one pen drive of CCTV footage along with certificate under Section 65B. The witness has correctly identified the pen drive as P-16.

During cross examination, PW-18 deposed that he might have watched footages before handing over the same in pen drive. The witness has no knowledge about the working of CCTV Cameras at different locations or about their placement and deposed that process of installation of cameras was under process. The suggestion has been denied that cameras were functioning on 13.05.2021 and

14.05.2021 and deliberately the material evidence is withheld. The witness also produced the office copy of certificate under Section 65B of Indian Evidence Act vide Ex.PW18/E. During cross examination, witness admitted that computer installed in the monitoring room of the superintendent office, was not operated by him.

PW-19 Praveen Kumar Warder, was posted at Jail no.2. He was on duty on 14.05.2021. The witness deposed that at about 7.00 a.m, on hearing the noise coming from barrack no.4, they immediately rushed there and saw UTP Srikant was caught hold by Krishan Sresth and Ganpat while Aakash and Arun was having cricket bats in their CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 26 of 79 hands and were beating Srikant and also shouting that they would kill him. Warder Lalit and Sewadar Sunil was also with him. They separated all the five UTPs. UTP Arun was bleeding from his head and accordingly he was taken to dispensary. Other UTPs were locked in barrack no.6. Srikant was asked about medical assistance but he denied. The witness further deposed that at about 9.00 a.m., witness along with Assistant Superintendent Sudama Mehto and Chakkar Chief Krishan came to the barrack no.4 to inspect Srikant. He was in attached bathroom from where he informed Sudama Mehto that he was not well and feeling nausea and dizziness and requested for being taken to dispensary. They helped him to wear clothes and shifted him on wheel chair to the dispensary. The Statement of this witness was recorded by the CBI officer. The witness identified all the accused persons in the court and also identified the broken cricket bats Ex.P1 and P2.

During cross examination, PW-19 deposed that he was not familiar with the names of UTPs/ accused persons having been posted 2-3 days prior to the incident. He was apprised of the names of inmates after the incident by Incharge Lalit. The bats were snatched from the accused persons and after collecting the same, warder Lalit deposited the same at chakkar. No document at that time was prepared in this regard. The search was conducted by about 5-7 persons of Tamil Nadu Special Police under the guidance of Deputy Superintendent Krishan Kumar. The witness admitted that TSP force is equipped with canes and CBI vs Kishan Sresth & Ors.

```
CBI/39/2022                                Page no. 27 of 79
        batons.     The suggestion has been denied that Sudama
```

Mehto and his team brutally assaulted the deceased or that injuries suffered by deceased were caused by jail staff. The witness did not notice any bleeding from the body of the deceased. The witness could not see as to who assaulted and injured Arun. The suggestion has been denied that jail staff was assaulting Appu while accused persons intervened and therefore they have been falsely implicated. Appu was taken to dispensary by warder Lalit, Assistant Superintendent Sudama Mehto and Chakkar chief Krishan. The witness denied the suggestion that he was not present at the spot or that Deputy Superintendent R. N. Meena assaulted Appu in the evening before the date of incident. The statement of the witness was recorded by Ld. Judge who came to the Jail premises and also the statement of Warder Lalit was recorded by IO in his presence. The witness has denied the suggestion that he was tutored by the IO of CBI or that he was introduced as a witness at a later stage.

PW-20 Dr.Mohd. Aiyaz Ali, Senior Resident, Guru Govind Singh Government Hospital medically examined all the accused persons and collected their DNA samples. The MLCs of the accused persons have been proved as Ex.PW20/A, Ex.PW20/B, Ex.PW20/C and Ex.PW20/D. The witness has also identified the exhibits (Ex.P11 to P14) by which the DNA samples were collected by him. During cross examination, witness deposed that requisition CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 28 of 79 slip for lifting the DNA sample was given by SI Praveen. The DNA was lifted from cubital vein.

PW-21 Adeshwar Kant was posted as Jail Superintendent, Central Jail no.2. The witness received the information about the incident dated 14.05.2021 and he came to the Jail to make further enquiries. According to the witness, old CCTVs in the ward was not working as installations of new CCTVs were in progress. However, CCTVs installed at deori, dispensary and control room were functional and footage has already been handed over to CBI. PW-21 inspected the place of incident.

During cross examination, PW-21 admitted that a complaint was lodged against R. N. Meena for assaulting Appu but he did not forward any such complaint. No complaint regarding assault upon Appu by jail staff came to the notice of this witness. The statement of this witness was recorded by IO as well as by Ld. Magistrate on 14.05.2021. The witness does not recollect whether he was shown the weapon of offence i.e. Cricket bat or sketch thereof was prepared or shown to him. The report to the High Court of Delhi was given by DG (Prisons) regarding the incident. The Ld. Magistrate recorded the statement of inmates and staff. The forensic team had also visited the jail premises. The high level departmental enquiry was initiated wherein PW-21 had recorded the statements of inmates and jail staff personally. He suggested about CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 29 of 79 corrective measures for being taken by jail authorities but did not fix any responsibility regarding the incident.

PW-22 Krishan Kumar was posted as Deputy Superintendent, Jail no.2 and was on morning duty on 14.05.2021, Chief warder Kishan and warder Lalit brought inmate Arun to him with bandaged on his head. On enquiry, Arun had revealed that the fight had occurred with Srikant who attacked with a sharp weapon. Arun was shifted to ward no.3. The witness instructed Assistant Superintendent and warder to go and bring Appu and also instructed to search his bed. During the search, a mobile phone and iron patti were recovered by the search team. The information was given to the witness about Srikant complained of pain and nervousness while taking bath and was taken to dispensary. When Srikant was referred to Safdarjung Hospital, witness made necessary arrangements. PW-22 also got the search conducted and found broken bat (piece) between barrack no.4 and 6. The broken bats were handed over to this witness who kept the same at control room. He also took possession of T-shirt and lower of UTP Arun and handed over all these things to SI Kavish of PS Hari Nagar. The information was later on received about death of Srikant. The witness has identified the letter bearing his signature Ex.PW22/A, search report dated 14.05.2021 Ex.PW18/A (page no.28), punishment ticket PW18/A (page no.20), seizure memo of cricket bat Ex.PW1/D, seizure memo of blood stained clothes of UTP Arun Ex.PW1/E. The broken bats were CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 30 of 79 produced in the court and were identified by the witness and also the clothings of Arun Ex.P7 and P8. Statement of this witness was recorded by CBI.

During cross examination, PW-22 deposed that sports items on new purchase come to the control room of respective jails. He has no knowledge when the bats, involved in the present case were purchased and how they came to be supplied to jail no.2, ward no.2. The bats identified by the witness in the court do not include the broken piece recovered from open area between barrack no.4 and 6. The witness could not say that said broken piece was weapon of offence and same was not handed over to the police. PW-22 did not visit barrack no.4 and admitted that deceased was of quarrelsome nature and used to cause trouble to jail staff. The bats identified by the witness were handed over to him by warder Lalit. The suggestion is denied that he is deposing falsely to depose R. N. Meena. The witness also denied the suggestion that deceased was handled negligently which resulted in his untimely death.

PW-23 Dr. Varun Chandran. A was working as Assistant Professor, Department of Forensic Medicine and Toxicology, AIIMS. He has given expert opinion regarding the death of Srikant Ramaswamy. The witness deposed that they received copy of FIR, copy of postmortem report, copy of order of High Court dated 20.07.2021, treatment record of Srikant @ Appu, treatment CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 31 of 79 record of Arun, statement of Dr.Vridant, information regarding physical assault, inquest proceedings, photographs and video of postmortem examination. The queries were asked by SP, CBI and opinions were given by the Medical Board of AIIMS consisting of four doctors including PW-23. The witness has identified the relevant forwarding letter Ex.PW23/A and the opinion Ex.PW23/B(colly). The medical board was of unanimous opinion about the cause of death. During cross examination, PW-23 stated that report was signed by all the members simultaneously. The parameters of the deceased when he was brought to the jail dispensary was not normal and high pulse rate and low BP were the early signs of shock as a result of injuries. The witness has admitted that no single injury in itself is fatal but voluntarily stated that end result of multiple injuries proved fatal. The injuries were fresh in nature. On being specifically asked about the body part where fatal injuries were found, the witness apprised that multiple injuries were there on entire body and cumulative effect was shock as a result of blunt force injuries. There was blunt injury on the head of the deceased which caused internal hemorrhage. The specifications noted in the postmortem report, indicated recent injury (within the duration of six hours)since it was red in color.

PW-24 SI Kavish Lakra, was posted at PS Hari Nagar as Sub-Inspector. He visited Tihar Jail on receiving information about the incident where he received the CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 32 of 79 information about death of the deceased. PW-24 collected the MLC of the deceased from Safdarjung hospital and information was given to Sr. Police Officers as well as to Duty Metropolitan Magistrate. The Ld. Magistrate reached Safdarjung Hospital and inspected the body of the deceased. Thereafter witness along with Ld. Magistrate went to Tihar Jail where SHO PS Hari Nagar, Inspector Praveen and Crime Team were already present. The witness has deposed

about handing over of cricket bats by Deputy Superintendent Krishan Kumar and clothes of UTP Arun having blood stains and about seizure of the said articles. The bedsheet having blood stains from barrack no.4 was seized. The blood samples were lifted from the spot of incident. The rukka was prepared for registration of case under Section 302 read with Section 34 IPC. The witness has further deposed about conducting of postmortem on the dead body of the deceased and photography relating to this. The doctor handed over the exhibits such as clothes of the deceased, gall-bladder, liver, nail-clippings, viscera etc and all were seized. The witness has identified the statement of warder Lalit Ex.PW1/A. Copy of FIR and certificate under Section 65B has been proved as Ex.PW24/A. The witness has further deposed about relevant documents such as performa for conducting postmortem, identification memos Ex.PW24/B (colly). The witness has identified various seizure memos as well as exhibits of the case produced in the court.

CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 33 of 79 During cross examination, PW-24 stated that weapon of offence and identity of offender are most important factor. DD No.41A having name of R. N. Meena recorded therein is admitted. He visited the barracks but did not make any enquiry from inmates. The Ld. Magistrate recorded the statements of inmates during the proceedings inside the jail. The injury sheet was not prepared by this witness about multiple injuries of the deceased. He did not make any query about installation of CCTV cameras near the place of occurrence. Witness had sent brief facts along with inquest papers at the instance of Inspector Praveen to whom the investigation was transferred. The exhibits were deposited in the Malkhana by the witness. The suggestion has been denied that R. N. Meena was the main culprit or that being senior officer of jail he was saved or that investigation was misdirected. The weapon of offence i.e. Cricket bats were not shown to the crime team. The witness has denied the suggestion that FIR was lodged after consultation with R. N. Meena and officers of the Jail.

PW-25 Inspector Parveen Chauhan, was posted as Inspector (investigation) PS Hari Nagar. On receipt of the information about the incident of the present case, he reached Central Jail, Tihar and met the jail officers and staff. He also visited barrack no.4 and observed blood stains on the floor and also on the bedsheet. The crime team inspected the spot and conducted photography. SI Kavish Lakra from PS Hari Nagar inspected the crime CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 34 of 79 scene and lifted the blood stains from floor and bedsheet. The statement of Lalit was recorded and broken bats were handed over to SI Kavish and thereafter the FIR was registered. The Duty Magistrate also came to Tihar Jail for conducting the inquest proceedings. The statements of jail staff were recorded. The statements of parents of the deceased were recorded. The witness has further deposed about the investigation conducted by him relating to the present case particularly the arrest of the accused persons, preparation of site plan Ex.PW25/A, disclosure statements and arrest memos of the accused persons, identification of exhibits etc. During cross examination, PW-25 stated that he reached jail premises within five minutes of receiving the message and remained there till mid night. He admitted that message was recorded about beatings given by jail staff at the instance of R. N. Meena but no FIR was registered on the same. The witness visited the site of occurrence several times. The witness could not tell

about the brand / make of cricket bats nor he prepared any sketch of the same. No statement was recorded about working condition of CCTV cameras. Accused persons were not arrested on 14.05.2021 as according to the witness permission of the court was required. The suggestion has been denied that accused was not arrested on 14.05.2021 as the culprit was not known. The statements of parents of the deceased were recorded but it is denied that deceased had informed his parents about apprehension of his being killed by jail CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 35 of 79 staff. He had recorded the statements of three inmates including one inmate namely Prince. The witness has denied the suggestion that he has investigated the matter in a casual manner and did not record the statements of UTPs who revealed about jail staff having killed the deceased. On 14.05.2021, he was present as Supervisory officer giving instructions to investigating officer. He did not give instructions to IO or to crime team to take finger prints of the accused persons or to find out chance prints from weapon of offence. He did not find out whether any cameras or if and how many cameras were functioning on the day of incident.

PW-26 Ms.Anjani Mahajan was the duty magistrate, South District, Saket Court on 14.05.2021. She received the information about the incident and proceeded to Safdarjung Hospital to conduct inquest proceedings. She carried out body inspection of the deceased at mortuary. PW-25 has deposed about necessary directions for constitution of medical board and she also proceeded to the spot of incident for inspection thereof and for examining the eye witnesses. The order is proved as Ex.PW26/A. During cross examination, she deposed that inquest proceedings continued over a long period and were concluded on 07.11.2022. The original record of inquest proceedings has been produced and proved as Ex.PW26/DA.

CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 36 of 79 PW-27 Gagan was lodged with Tihar Jail in May 2021. He was at barrack no.4 and later changed to barrack no.6 of ward no.2. He knew deceased Srikant @ Appu and stated that he was addicted to drugs and used to extort money from other inmates. On 14.05.2021, during the morning, PW-27 heard about a fight ensued between Arun and Srikant and he had seen Arun being taken away to Jail dispensary in a bleeding condition. PW-27 was lodged inside his barrack along with Srikant @ Appu who after sometime went to take bath where he collapsed and also taken to dispensary. Later the information came about the death of Srikant.

During cross examination on behalf of prosecution, PW-27 admitted that there was a fight between Srikant @ Appu and Arun on 12.05.2021 as well due to which barrack was shifted on 13.05.2021. Witness also knew accused Aakash, Ganpat and Kishan Sresth lodged in barrack no.6. He also admitted that on 14.05.2021 in the morning, warder Lalit and warder Praveen came to barrack no.4 and separated Srikant @ Appu from Arun and his associates who were assaulting each other. The suggestion has been denied that Arun and co-accused were armed with bats or they were assaulting each other by means of bats. The witness was confronted with his statement Ex.PW27/PA. PW-27 denied that he is not disclosing true facts having been won over by the accused persons. During cross examination on behalf of defence, witness deposed that installation of CCTV cameras had started around the time CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 37 of 79 incident had occurred but he has no knowledge how many cameras were functional.

PW-28 Anurag Singh posted as Sub-Inspector with Special Crime Branch-02, CBI, New Delhi, on 08.12.2021 on the instructions of Inspector Pankaj Vats collected the articles of this case from Malkhana of PS Hari Nagar, which were 14 sealed FSL exhibit pulandas and submitted the said articles with report to Malkhana CBI. Again on 10.12.2021, the witness visited PS Hari Nagar and collected one wooden box containing viscera and one sealed FSL report from the Malkhana Incharge and submitted the same with Malkhana, CBI, SC-II.

PW-29 Vikas @ Aloo was lodged with ward no.1, Jail no.2 during May 2021 having been convicted in the year 2018 in a murder case. He had cordial relations with Srikant Rama Swamy @ Appu (deceased). On 13.05.2021, PW-29 visited ward no.2 to meet Srikant Rama Swamy but meanwhile Deputy Superintendent R. N. Meena came there who slapped and warned him about his presence in ward no.2. On 14.05.2021 PW-29 came to know about the killing of Appu inside the jail and since he was angry with Deputy Superintendent for having slapped him, he made a PCR call to inform that Appu was killed by R. N. Meena. The incident was not witnessed by PW-29 and he admitted that he gave false information in the PCR call. The call was made from the mobile which he received from Appu previously. Phone has been destroyed after making the CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 38 of 79 call. The witness was cross examined by Ld. Prosecutor during which he denied having stated that he found accused Hunny and Ganpat and one Baccha had heated arguments with Srikant or that he mediated and pacified them. The witness also denied having stated to the CBI officer that he came to know that Appu was killed by accused Arun, Ganpat, Akash, Kishan and was accordingly confronted with the statement Mark PW29/X. PW-30 S. Ingrasal, Deputy Director, CFSL is an expert having examined cases of video footages and photographs. The witness examined one Pen-drive of CCTV footage in the present matter which was forwarded to him in a sealed envelope. The Pen-drive was marked as QPD. The witness has examined the pen-drive and found that no editing, addition, alteration or tampering was done and therefore the CCTV video footage were genuine. His opinion report is Ex.PW30/A and pen-drive is Ex.P-16.

During cross examination, PW-30 denied that CFSL was under the control of CBI. The suggestion has been denied that he submitted the report as per convenience of the IO or at the request of the CBI officer. The witness further denied the suggestion that his report is incorrect.

PW-31 Pankaj Vats was posted as Inspector CBI and he has deposed about FIR of the case having been transferred to the CBI on the directions of the High Court of Delhi on the basis of writ petition filed by Smt. Malika. The file of the case was handed over to this witness. The opinion CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 39 of 79 from medical board was ascertained in order to clarify the doubts and the board has corroborated the report of Safdarjung Hospital. The cut marks appearing on the body of the deceased were explained in the manner that they were caused during the postmortem conducted by the doctor. The witness has narrated about the facts of the case and further revealed

that during investigation he collected documents from the Jail. The witness has proved the FIR Ex.PW31/A (colly). The documents forwarded by Superintendent, Central Jail no.2 Ex.PW31/B and deposed about the other investigation conducted by him. The witness also filed the status report before the High Court of Delhi and subsequently filed the charge-sheet against the accused persons.

During cross examination, PW-31 deposed that he did not personally investigate the fact of accused Arun and Akash having taken two cricket bats from the guard room, in view of pointing out memo already prepared. The witness could not recollect whether any punishment ticket issued to the accused Akash was taken by him during the investigation with respect to the dispute with the deceased. The cricket bats were not inspected by him. The suggestion has been denied that the cricket bats have been planted or that they were not used as weapon of offence. It is also denied that deceased was assaulted and head injury was caused on the directions of Deputy Superintendent R. N. Meena or that accused Akash was tortured through cigarette butts at the instance of Deputy Superintendent R. N. Meena. The CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 40 of 79 witness has denied the suggestion that he has filed the charge-sheet incorrectly against the accused in order to protect the jail authorities.

PW-32 Rajeev Vashisth, Nodal Officer with Bharti Airtel Limited deposed that on 24.09.2021, he forwarded the certified copy of CDR and other record pertaining to mobile number 9311898547 along with certificate under Section 65 B Indian Evidence Act to SP CBI and same has been proved as Ex.PW32/A (colly). During cross- examination, the witness deposed that mobile was in the name of Ms. Heena w/o Mohd. Irfan and three calls were made from this mobile number to number 100.

PW-33 Vijay Yadav assisted the investigating officer Pankaj Vats in the present case. During investigation , PW-33 recorded the statements of witnesses and collected relevant documents from Jail. The witness has admitted the statements of UTP Prince Chauhan Ex.PW14/A and statement of UTP Gagan Ex.PW27/A.

10. Thereafter, the prosecution closed its evidence.

STATEMENTS OF ACCUSED PERSONS UNDER SECTION 313 Cr.P.C

11. The statements of all the accused persons were recorded under Section 313 Cr.P.C by putting across the incriminating evidence in question answer form.

12. The accused Arun @ Mandva denied the prosecution case and the allegations thereof. Accused Arun admitted that he was CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 41 of 79 shifted to barrack no.6 in the night of 13.05.2021 but denied having any contact or interaction with other accused persons. He also admitted that there were scuffle between him and Srikant Rama Swamy on 14.05.2021 and according to the accused, Srikant challenged him for having moved the application for change of barrack. Accused further denied having assaulted Srikant @ Appu and further stated that Srikant was angry with him for having

moved application for change of barrack and therefore he hit by means of knife and caused injury on his head. It is admitted that he was taken to dispensary. It is also admitted that warder Lalit and Praveen came there to separate them as also he got himself free from Srikant and rushed towards Lalit. Accused has denied having made any disclosure statement and claimed that he has been falsely implicated. The accused claimed having no knowledge about the details of investigation including lifting of exhibits from the spot. Accused has admitted that he was sent to hospital for medical examination and for collection of DNA samples and that his T-shirt and lower were taken by jail authorities. Accused further stated that the witnesses are interested to favour the prosecution and he is innocent and falsely implicated.

13. When questioned under Section 313 Cr.P.C, accused Akash @ Hanny also denied the case of the prosecution and the allegations thereof. Accused admitted that he was lodged in Tihar Jail no.2 and that co-accused Arun moved application Ex.PW10/A and Ex.PW3/A for change of the barrack for the reason that Srikant Rama Swamy used to beat him. The accused has denied they having deliberated or decided to assault and kill CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 42 of 79 Srikant Rama Swamy. With respect to injury caused by Srikant to Arun by means of Iron Patti, the accused claimed no knowledge and stated that no such incident had happened in his presence. The accused has denied having any knowledge about facts and details of the investigation including lifting of exhibits from the spot. It is admitted that his statement was recorded by Ld. Magistrate. The collection of blood sample is admitted and also about the arrival of crime team. According to the accused, his signatures were obtained on blank papers and arrest memos have been prepared on the same. Deputy Superintendent R. N. Meena has been named as Architect of assault upon deceased Appu. Accused further claimed that this is a false case against him. The jail authorities have tortured him by means of cigarette butts on his back due to which he sustained burn injuries. Many complaints have been made to Jail visiting Judge and even Ld. Magistrate called for the report in this regard. Accused claimed that he has nothing to do with Srikant @ Appu and he had no quarrel with him at any point of time. Accused also claimed innocence and false implication and further stated that warders were equipped with body cameras and recording can be retrieved from the same. The jail authorities have not brought on record the photographs recorded by these cameras as the same would have shown his non involvement.

14. Accused Ganpat has also claimed innocence and false implication and controverted the case of the prosecution by denying the allegations and by expressing no knowledge about the facts and investigation. Accused Ganpat also claimed that his signatures were taken on blank papers. According to accused, CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 43 of 79 CCTV cameras were installed around the jail premises including ward no.2 and its barracks. Medical examination is admitted and also the recording of statements by Ld. Magistrate after the incident. The accused has no knowledge about the lifting of exhibits and seizure of articles and stated that prosecution witnesses have deposed falsely at the instance of jail authorities.

15. Similarly accused Kishan Sresth has also pleaded false implication in the present case. Medical examination is admitted but the allegations as to the happening of the incident and also the conduct of the investigation have been denied. The accused has no knowledge about the seizure of articles and lifting of exhibits and conduct of the investigation.

DEFENCE EVIDENCE:-

16. In defence, DW-1 Ajay @ Rinku S/o Dadidh Pal has been examined by accused Akash @ Hanny. According to the testimony of DW-1, he was lodged in Jail no.2, ward no.1, barrack no.4 at Tihar Jail on 14.05.2021. He was deputed as Sewadar and he had opened the barracks and at about 6.30 a.m. he heard the noise coming from barrack no.4 and found that crowd had gathered and jail Head Warder Lalit and Warder Praveen were present along with other officials. On their directions, DW-1 lodged the inmates inside their respective barracks and locked the same. DW-1 had not witnessed any fight but he had seen the injured inmate being taken to dispensary. DW-1 further stated that inmate Srikant who was lodged in barrack no.4 was abusing and at about 7.30 to 8.00 a.m., 5-7 officers of the jail including Lalit and Parveen came there and got CBI vs Kishan Sresth & Ors.

the barrack no.4 opened. There was scuffle between the staff

and Srikant. DW-1 was directed to bring wheelchair and Srikant was taken to OPD on wheelchair.

17. During cross-examination on behalf of Ld. Sr.PP for CBI, DW-1 admitted that inquiries about the incident were made from him. He was not pressurized by CBI officers. He admitted that Srikant used to threaten and quarrel with other inmates. DW-1 denied having stated in his statement Ex.DW1/PA about Srikant @ Appu having been beaten by accused persons with cricket bats. DW-1 was confronted with the statement Ex.DW1/PA. DW-1 further stated that he did not file any complaint regarding the scuffle between jail officials and Srikant and about Srikant having been taken on wheel chair after the scuffle. He denied to be deposing falsely under the influence of accused persons or that Srikant was beaten by accused persons in furtherance of their common intention. DW-1 denied to be a tutored witness.

ARGUMENTS / SUBMISSIONS:-

18. Lengthy arguments have been advanced by Sh.Amit Kumar, Ld. Sr.PP for CBI and by Sh.Aditya Singh Deshwal, Legal Aid Counsel for accused no.1 to 3 and Sh.Bharat Dubey, Ld. Counsel for accused no.4. I have also carefully examined the entire record of the case particularly statements of witnesses and exhibited documents of the case.

19. On behalf of Prosecution, Ld. Sr.PP Sh.Amit Kumar submitted that accused persons are named in the FIR for having assaulted the deceased and thereby inflicting injuries sufficient in the ordinary course of nature to cause death. The incident took CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 45 of 79 place on 14.05.2021 inside the barrack no.4, Jail no.2, Central Jail, Tihar. The accused persons were sharing common intention to kill the deceased as also they had

declared during the incident that they would kill Srikant @ Appu. The prosecution has examined 33 witnesses including two eye witnesses, PW-1 Head Warder Lalit and PW-19 Warder Praveen. Both the witnesses have deposed in clear terms about the incident. The weapon of offence i.e. cricket bats were secured by the witnesses and later handed over to the police. The motive to commit the offence has also been clear as Arun was having bitterness against deceased Srikant, who used to trouble him while he was lodged in barrack no.4. Accused Arun moved an application Mark PW3/A seeking change of the jail due to the conduct of the deceased Srikant. He was shifted to barrack no.6 where he met other inmates (co- accused). During the incident, accused Arun also sustained sharp cut injury and was taken to jail dispensary for treatment which further shows that accused Arun was involved in the commission of the offence. After the assault, Srikant was feeling normal and therefore preferred to stay at the barrack but at about 9.00 a.m., while he was taking bath in the washroom, he complained of nervousness and accordingly was taken to jail dispensary. Srikant @ Appu fell unconscious and his parameters were not normal. It has come in the expert opinion that in such type of injuries slow internal bleeding and accumulation of bleeding leads to gradual blood loss from circulatory system which then leads to shock and sudden unconsciousness. The victim could be fine initially till the final circulatory collapse occurs and may enter in the shock as in the present case. The postmortem report CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 46 of 79 and expert forensic opinion are in conformity with the manner in which the incident had taken place. The scientific report also corroborates the version of the prosecution.

20. Ld. Sr. PP further argued that defence has not been able to prove the innocence of the accused persons. The defence has taken the plea that deceased was assaulted at the instance of Deputy Superintendent R. N. Meena but the possibility has been ruled out as R. N. Meena was not even present at the time of incident. Even the inmate PW-14 Prince Chauhan has not supported the defence version and rather stated that deceased was assaulted by Arun. The inquest proceedings conducted by Ld. Magistrate also rule out any possibility of involvement of Deputy Superintendent R. N. Meena as noted in para no.73 of the order dated 07.11.2022. It is settled law that the testimony of official witnesses cannot be rejected on the ground of non-corroboration and the examination of independent witnesses is not an indispensable requirement. For applying Section 34 Indian Penal Code, it is not necessary that accused persons should have engaged in any discussion or agreement so as to prepare a plan or hatched a conspiracy for committing the offence. Common intention is a psychological fact and it can be formed a minute before the actual happening or even during the occurrence of the incident. It is asserted that the prosecution has been able to bring sufficient evidence on record to establish the guilt of the accused persons and therefore conviction must be recorded against the accused persons. Ld. Sr. PP for CBI has relied upon the following judgments:-

CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 47 of 79

(i) State through the Inspector of Police vs Laly & Ors., Manu/SC/1341/2022

(ii) Rizwan Khan vs The State of Chhattisgarh, MANU

SC/0680/2020.

(iii) Kishan Chander vs State of Delhi, MANU/SC/0003/2016

(iv) Ram Naresh vs. State of U. P., MANU/SC/1286/2023

21. On behalf of accused no.1 to 3, Sh.Aditya Singh Deshwal, Legal Aid Counsel has submitted that the first information about the incident was given vide DD No.41A at about 2.30 p.m. by the Jail inmate Vikas @ Aloo and not by the jail authorities. Even after getting the news that deceased Srikant has expired at 11.50 a.m. the Safdarjung Hospital, Jail authorities did not take any steps for registering the FIR. Wireless Message on behalf of Jail Authorities sent to the court of District & Sessions Judge, Rohini and to SHO PS Hari Nagar on 14.05.2021 at 03.03 p.m. wherein the names of accused persons have not been disclosed and there are no allegations that accused persons have inflicted fatal injuries upon the deceased. Ld. Counsel further argued that jail authorities were in full control of the crime scene during the crucial initial hours and delayed passing on information to the authorities about the incident. The prosecution has not been able to show strong and sufficient motive on the part of the accused persons to commit such serious offence of murder. There was no common intention or common motive to attack or kill the deceased. Infact, Srikant was a nuisance and he had direct CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 48 of 79 altercation with the jail authorities on several occasions and even recent to the incident of his death. Jail authorities in order to cover up their own fault and dereliction of duties, have falsely implicated the accused persons. No CCTV footages have been produced despite the areas inside the jail were secured and monitored through CCTV cameras as deposed by PW-1/Lalit (complainant). The important evidence has been withheld by the prosecution and therefore adverse inference needs to be drawn.

22. With respect to the weapon of offence, Ld. Counsel further submitted that no CCTV footage has been produced to show that accused persons had taken out the cricket bats from guard room and had hidden the same inside the barrack. Even no sketch of the weapon of offence was prepared. The cricket bats were not produced before the crime team so as to enable the crime team to lift the finger prints from the same. In this way, crucial evidence has been left out. Ld. Counsel further submitted that despite the presence of sufficient number of inmates who had witnessed the incident, only two witnesses, that too jail officials have been examined. The eye witnesses examined by the prosecution are not credible and trustworthy. Admittedly, Sewadar Sunil was present but he was neither cited as witness nor examined. Another eye witness namely Ajay s/o Dadidh Pal has not been examined by the prosecution despite having been cited in the list of witnesses. Subsequently Ajay s/o Dadidh Pal appeared has defence witness and he has given different version of the incident thereby exonerating the accused persons. There is no reason to disbelieve DW-1 Ajay. Ld. Counsel further pointed out that as per the version of eye witnesses, no visible injuries were found CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 49 of 79 when they had seen Srikant @ Appu after the assault, while the postmortem report mentions about 39 injuries. There is no evidence on record to show that accused persons could lay hands on the cricket bats which otherwise were secured items and were not readily

available for use by the prisoners. The motive has only been shown in respect of accused Arun while no motive is attributed to the remaining accused. Due to various discrepancies in the prosecution case, the entire facts as projected are doubtful. The benefit thereof must be given to the accused persons. Ld. Counsel has relied upon the following judgments of Delhi High Court:-

(i) Kuldeep Singh vs State of NCT of Delhi, Crl.A.1126/2018 dated 17.11.2023.

(ii) Ranjeet Raut vs State, Crl. A. 1393/2019 dated 28.02.2023.

23. On behalf of accused no.4, Ld. Counsel Sh.Bharat Dubey has submitted that prosecution has failed to prove its case. It has not been proved that accused persons were sharing common intention to assault Srikant @ Appu. There is no material to show that accused persons had taken out bats from the guardroom on 13.05.2021. PW-3 Sumit Baliyan himself admitted that he was on duty on 13.05.2021 and could not find any objectionable articles during checking of barracks. PW-3 also found cricket bats and carom-board lying in the guardroom at 7.30 p.m on 13.05.2021. There are many loose ends in the matter and prosecution has left them unfulfilled. The manner in which the incident is stated to have been taken place is not plausible. As per jail dispensary record, accused Arun was taken to dispensary CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 50 of 79 at 7.15 a.m while Srikant @ Appu was taken to dispensary at 9.15 p.m. Admittedly, during this two hours gap, Tamil Nadu Special Police had visited barrack no.4. The assault was executed by Tamil Nadu Special Police as Srikant @ Appu was a nuisance and creating problems for jail officials. Tamil Nadu Special Police admittedly was equipped with batons and dandas. Tamil Nadu Special Police used batons /dandas to assault Srikant at the instance of Deputy Superintendent R. N. Meena. The sister of Srikant had disclosed during the inquest proceedings about the phone call received from Srikant whereby he expressed apprehension of being killed by jail authorities. It is impossible that two accused persons could cause 39 injuries upon the deceased within a span of few minutes. The assault was infact executed by jail authorities through personnels of Tamil Nadu Police. It is further submitted that accused Akash @ Hanny had no motive to commit the crime. Akash was lodged in a separate barrack no.6 and he was not having any grudge or enmity with Srikant @ Appu. No blood was found on the clothes of accused Akash nor cricket bat allegedly used by Akash was produced before crime team for lifting finger prints. The prosecution has failed to connect accused Akash @ Hanny with the commission of crime. The prosecution has also failed to explain about recovery of a piece of broken bat lying between barrack no.4 and 6 found by PW-22 Krishan Kumar. It is also submitted that when Srikant was taken to Safdarjung Hospital his parameters were near to normal and his condition subsequently deteriorated due to mishandling by the doctors. No witness from Tamil Nadu CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 51 of 79 Special Police has been examined by the prosecution in support of their case.

24. I have given due consideration to the submissions of both the sides in the light of material available on record and the legal position. The analysis on various aspects of the case is as follows:-

FIRST INFORMATION REPORT

25. The information recorded vide DD No.41A at 2.31 p.m, was lodged by Vikas @ Aloo (PW-29) without any details as to the incident and admittedly out of vengeance against Deputy Superintendent R. N. Meena. The said information by any stretch cannot be treated as First Information Report about the crime. Vide DD No.45A at 3.01 p.m. (Ex.PW2/B) information came from the hospital about death of Srikant during treatment. This also cannot be treated as First Information Report.

26. The first information report (FIR) is a vital document since it contains first information received with respect to the crime committed. On the basis of statement of warder Lalit (PW-1), endorsement was made by SI Kavish (PW-24) and FIR Ex.PW24/A was registered at Police Station, Hari Nagar. The incident took place in the morning hours of 14.05.2021 at about 7.00 a.m. The death of Srikant was reported at about 11.50 a.m. The necessary endorsement on Ex.PW1/A was made and same was sent for registration of FIR on 14.05.2021 at about 8.40 p.m. The sequence of events show that FIR was registered without any delay. The accused persons have been named in the first information report and the facts relating to the incident have been CBI vs Kishan Sresth & Ors.

clearly recorded therein. PW-1 Lalit has confirmed in his

testimony about recording of his statement Ex.PW1/A and has supported the contents of the same. Thus, it can conveniently be concluded that authorities have been prompt in reporting the matter and there is no lapse on the part of concerned police authorities in taking proper action regarding the incident.

OCULAR EVIDENCE

27. This is a case of direct evidence. The incident happened in the morning of 14.05.2021 inside the jail premises in the presence of other inmates and jail officers. PW-1 Lalit is the head warder of jail no.2 and is the author of first information report. He has testified during the trial and narrated the incident in detail and supported his statement Ex.PW1/A. PW-1 was present at the concerned ward along with warder Praveen (PW-

19) and Munshi Sunil, when on hearing the noise, they rushed to barrack no.4 and witnessed the accused persons Kishan Sresth, Ganpat @ Kunal, Arun @ Mandva, Akash @ Hanny assaulting Srikant in the manner Arun and Akash were beating Srikant with cricket bats while Ganpat and Kishan had caught hold of Srikant. All the four accused persons were also shouting that they would kill Srikant. Even Accused Arun received injury on his head during this scuffle and was found bleeding. After separating accused and the deceased, cricket bats were taken from accused persons, while Arun was sent to dispensary for treatment. Srikant Rama Swamy preferred to stay back at his barrack. As per the deposition of PW-1 at about 9.00 a.m., when he along with other jail officials visited barrack of Srikant for conducting CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 53 of 79 search, iron patti and mobile phone were recovered. Srikant was taking bath in attached bathroom when he complained about feeling unwell and requested to be taken to dispensary. Srikant was also taken to dispensary where initial parameters were checked and he was referred to Safdarjung Hospital for further treatment. Srikant was brought to the Safdarjung Hospital by the jail staff where again his parameters were examined and where his condition suddenly deteriorated. Despite having administered CPR (Cardio-Pulmonary Resuscitation) Srikant could not be revived and declared dead. Regarding cricket bats, PW-1 stated that they were taken from accused and kept in control room and later handed over to the police. Sports articles are secured items and remain in the custody of chakkar chief.

28. Similarly, PW-19 Praveen Kumar is also an eye witness to the incident. He was on duty at ward no.2 of jail no.2 at the time of incident. He has testified about the incident thereby supporting and corroborating the statement of PW-1 as well as the contents of first information report. Regarding cricket bats, PW-19 deposed that they were taken from accused persons and Lalit (PW-1) deposited the same at Chakkar, although no document was prepared in this regard.

29. On appreciation of evidence of both the above witnesses (PW-1 and PW-19), it is seen that they have given their testimony in a consistent and categorical manner. Both are natural and probable witnesses being officers on duty at the concerned jail. The presence of PW-1 warder Lalit and PW-19 warder Praveen has even been admitted by accused Arun in his statement CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 54 of 79 recorded under Section 313 Cr.P.C, when he said that Srikant attacked him with knife and caused injury on his head and Lalit and Praveen came there to separate them, as also he got himself free from Srikant and rushed towards Lalit. Despite lengthy cross-examination, the testimony of PW-1 and PW-19 could not be impeached and there is no reason to discard their version. No strong motive has been attributed to them for giving fabricated version of the incident. Although it has been suggested to PW-1 and PW-19 that jail officials infact assaulted Srikant and caused his death, but both the witnesses have clearly refuted such suggestions.

30. Another important circumstance linking the accused to the incident, is the injury sustained by Arun on his head. It is an admitted position that in the morning of 14.05.2021, there was scuffle between Srikant and Arun as Srikant was angry with Arun for having moved the application for change of his barrack. According to accused Arun, he was assaulted by Srikant due to which he sustained sharp injury on his head. Medical examination report Ex.PW5/A shows that Arun was examined at dispensary at about 7.15 a.m where he was brought with the 'history of assault by fellow inmate'. The treatment for the injury was done by PW-5 Dr. Nirmal Vashistha who was medical officer on duty at the relevant time.

31. According to Ex.PW6/A, Srikant was brought to dispensary at about 9.15 a.m, while he was unconscious and was not responding to verbal command. He was referred to Safdarjung Hospital for further management by PW-6 Dr. Vikram CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 55 of 79 Pratihast. The injuries noted on the body of Srikant have been detailed in the medical examination report Ex.PW6/A as well as on the referral slip Ex.PW6/B. As per MLC Ex.PW11/A, Srikant was declared dead at about 11.50 a.m on 14.05.2021. As per record, when Srikant was brought from jail hospital, he was unconscious and his blood pressure was not recordable and pulse was not palpable. According to the postmortem report Ex.PW15/A, Srikant expired due to shock as a result of multiple injuries to head, both upper limbs and lower limbs consequent to blunt force impact. The injuries were noted to be ante-mortem and fresh in nature.

32. PW-6 Dr. Vikram Pratihast and PW-11 Dr. Manoj Kumar have deposed about the condition of the deceased when he was brought to the jail dispensary and Safdarjung Hospital. Medical examination reports are consistent with the facts of the incident. Therefore, the medical evidence confirms the fact that Srikant died due to incident that happened in the morning of 14.05.2021. The manner in which the assault was carried out, itself explains that accused persons were sharing common intention to kill the deceased, as also they were together in assault and were even declaring to kill him.

33. PW-14 Prince Chauhan was lodged with ward no.2, Jail no.2. This witness has stated that Arun assaulted Srikant with bat and other inmates also gathered there. PW-14 has not named other accused persons but he was duly confronted with his statement recorded under Section 161 Cr.P.C Ex.PW14/A wherein he named all the accused persons for having carried out CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 56 of 79 the assault together. During cross-examination, no motive could be attributed to PW-14 about deposing falsely. The testimony of PW-14 is important to rule out the defence pleas that Srikant (deceased) was assaulted by jail officials.

34. On behalf of defence, a plea has been raised that eye witnesses are interested witnesses being jail officers and they should not be believed as they got vested interest in saving the jail authorities.

35. While appreciating the evidence of a witness, the approach must be whether the evidence of witness read as a whole appears to have a ring of truth. Once that impression is found, it is undoubtedly necessary for the Court to scrutinize the evidence more particularly keeping in view the deficiencies, drawbacks and infirmities pointed out in the evidence as a whole and evaluate them to find out whether it is against the general tenor of the evidence and whether the earlier evaluation of the evidence is shaken as to render it unworthy of belief. Minor discrepancies on trivial matters not touching the core of the case, hyper- technical approach by taking sentences torn out of context here or there from the evidence, attaching importance to some technical error committed by the investigating officer not going to the root of the matter would not ordinarily permit rejection of the evidence as a whole. (Reliance is placed upon State of UP vs Krishna Master & Ors. AIR 2010 SC 3071).

36. On appreciation of evidence of eye witnesses, I am of the opinion that they have given a complete and exhaustive narration of the incident. Witnesses despite being cross-examined CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 57 of 79 extensively remained consistent to the effect that accused persons inflicted injuries upon the deceased by sharing common intention. The role played by each one of the accused is specifically narrated. It is very important to note that during magisterial inquiry, both these witnesses deposed on similar lines vide their statements Ex.CW20/A and Ex.CW17/A. Thus, right from initial statements till recording of evidence during the trial, witnesses have been consistent in their version. The quality of evidence given by witnesses (PW-1 and PW-19) is truthful and trustworthy.

37. In this way, there is sufficient evidence on record establishing the manner in which the occurrence had taken place.

MEDICAL EVIDENCE

38. As mentioned above, the medical examination reports of accused Arun and deceased Srikant at jail dispensary as well as medical examination report of deceased Srikant at Safdarjung Hospital, duly proved on record, show that deceased was assaulted with the intention to inflict bodily injuries sufficient to cause death or with the knowledge that the death must be the most probable result.

39. To conduct the postmortem of the deceased, medical board was constituted, consisting three members PW-15 Dr. Vedant Kulshrestha, Dr. M. K. Vahi and Dr.Sahil Khurana. It has been found that 39 external injuries and few internal injuries caused by blunt force impact which included abrasions, contusions and few lacerations were there on the body of deceased. The death CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 58 of 79 resultantly was due to shock as a result of multiple injuries which could be caused by blunt object like a cricket bat.

40. The expert opinion regarding the death of Srikant was also sought in the present case. PW-23 Dr. Varun Chandran who was working as Assistant Professor, Department of Forensic Medicine and Toxicology, AIIMS was the member of Medical Board consisting of Dr.Surbhi Garg, Senior Resident, Dr. Abhishek Yadav Associate Professor and Dr.Kulbhushan Prasad, Associate Professor (Chairman) and on analysing the FIR of the case as well as medical reports, treatment record, postmortem report of the deceased, inquest proceedings, photography and videography, the board provided the expert opinion Ex.PW23/B (colly) thereby confirming that the cause of death of deceased was due to shock as a result of multiple external and internal injuries as follows:-

> Opinion:-
>
> The deceased had multiple injuries with internal bleeding in underlying tissues and muscles of all four limbs. Internal bleeding was also present in brain and abdominal tissue.
>
> In such type of injuries, small blood vessels and capillaries get ruptured leading to slow internal bleeding and accumulation of blood leading to gradual blood loss from

the circulatory system, which then leads to shock and sudden unconsciousness. In this kind of situations, the victim could be in a apparent fine physical and mental state for some duration till the CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 59 of 79 final circulatory collapse occurs and may enter in shock, as in this case.

CBI.Q.3. Whether the injuries might have been incurred on previous day i.e. on 13.05.2021.

Opinion: All injuries were ante mortem in nature and fresh in duration, i.e. sustained within few hours before his death. The same may be corroborated with circumstantial evidences.

CBI.Q.4. Whether it is possible that even being beaten so much, there was no external bleeding. Even there was no external bleeding, whether it is possible that still the injuries could be grievous enough so as to make him unconscious after two hours, finally leading to death.

Opinion: Injuries No.15, 26 and 29 mentioned in Postmortem report were lacerated wounds which cause external bleeding. All other remaining injuries were abrasions and contusions which do not cause external bleeding, but injury to underlying tissues and muscle beneath them leads to the damage / rupture of small blood vessels and capillaries in contusions. This leads to internal bleeding, shock and death.

CBI.Q.5. Opinion in regard to the above mentioned points apart from the cause of death of deceased Srikant Rama Swamy may kindly be given. Any other opinion which may be relevant to the case.

CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 60 of 79 AIIMS Medical Board is of the unanimous opinion that the cause of death in this case is Shock as a result of multiple mentioned external and internal injuries.

41. During cross examination, PW-23 confirmed that parameters of deceased when he was brought to jail dispensary like high pulse rate and low blood pressure were early signs of shock as a result of injury. The board has opined vide Ex.PW23/B (colly) that injuries were fresh in duration and were sustained few hours before his death. The cumulative effect of multiple injuries was shock as a result of blunt force injuries. There was blunt injury on the head of the deceased which caused internal hemorrhage. The injuries were possibly inflicted within the duration of six hours, before death.

42. Expert testimony is made relevant by Section 45 of Indian Evidence Act 1872. The report Ex.PW23/B (colly) is detailed and comprehensive report and speaks volumes about the condition of

deceased and the circumstances under which, he met his death. The argument that opinion of an expert is not a substantive piece of evidence and can only be used for corroborative purpose has no force, as when a piece of evidence directly connects to the facts of the case, it becomes substantial piece of evidence.

43. Moreover, the medical evidence as well as expert evidence are consistent and there is no dispute as to the cause of death. Although, defence pleaded negligence by doctors in handling the patient but the defence has failed to spell out specific negligence allegedly done by jail or hospital authorities. It is evident that CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 61 of 79 deceased was rushed to the dispensary as soon as he complained about nausea and dizziness and was promptly shifted to Safdarjung Hospital on being referred there. PW-11 Dr. Manoj Kumar at Safdarjung Hospital checked the parameters and tried to revive the deceased through CPR but was not successful. There is nothing on record to suggest that medical protocols were not followed or that doctors were negligent in performing their duties. Keeping in view the oral as well as documentary evidence, relating to the medical examination of the deceased, it is clear that death of Srikant has been homicidal in nature. The medical evidence, therefore, supports the ocular evidence and goes in favour of prosecution.

SCIENTIFIC ANALYSIS

44. According to expert opinion, Ex.PW23/B (colly), injuries no. 15, 26 and 29 (as mentioned in postmortem report) were lacerated wounds which cause external bleeding.

45. In accordance with crime team report Ex.PW12/A, one bedsheet white color having blood stains was found. As per seizure memo Ex.PW1/B, blood samples were lifted from the crime spot in three cotton gauzes (Mark A, B and C). The seizure memo Ex.PW1/C shows that white bed-sheet having blood stains from the place of deceased was seized. Vide Ex.PW1/D, the weapon of offence (broken cricket bats) were seized. There were blood stains on the pieces of cricket bats. The blood stains clothes of accused Arun were also seized vide Ex.PW1/E. On 15.05.2021, the seizure memo Ex.PW9/A was prepared vide which nail-clippings, glass container containing CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 62 of 79 organs of the deceased, clothes of deceased, blood samples of the deceased and the viscera and organs were seized.

46. During the investigation, blood samples of all the four accused persons were seized vide Ex.PW24/C. The above said articles / exhibits were sent for scientific analysis.

47. PW-16 Shashi Bala Pahuja, Senior Scientific Officer (Biology), FSL, Rohini received the sealed parcels on 10.06.2021. She examined the exhibits and prepared her detailed report vide Ex.PW16/A. On biological examination, PW-16 could detect blood on white bed-sheet, broken pieces of bats, clothes of Arun and clothes of deceased. On DNA examination, it was found that blood on the floor lifted through cotton gauze, blood on the bed-sheet, blood on the broken cricket bats, on the nail

clippings of the deceased, as well as on clothes of the deceased, belonged to the deceased Srikant. The blood appearing on the clothes of accused Arun was of Arun himself.

48. By virtue of the scientific analysis, it stands established that cricket bats were weapon of offence and at the time of assaulting Srikant Rama Swamy, the blood came on to cricket bats. The scientific examination, therefore, confirms the fact that cricket bats were used as weapon of offence to commit the offence. Also as per Ex.PW26/A (inquest proceedings whereby dead body of the deceased was examined by Ld. Magistrate) the blood was noticed coming out of head of the deceased as well as injury mark and scratch mark on and under the left foot from where the blood was coming out. It is also clear that multiple CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 63 of 79 injuries were sustained by the deceased on different parts of his body.

49. To conclude, the scientific evidence has connected and corroborated the fact that deceased was assaulted by means of cricket bats and his blood was found on the same.

MOTIVE

50. Motive is a state of mind which is primarily known to the accused himself and it may not be possible for prosecution to explain with precision as to what actually prompted or excited the accused to commit a particular offence. In cases of direct evidence, motive is not necessary to be proved. Where there is direct trustworthy evidence of the witnesses as to the commission of the offence, the motive part losses its significance. The evidence as to the motive, would be very significant in cases of circumstantial evidence as it is required to form one of the links in the chain, but that would not be so in cases where there are eye witnesses of credibility. Though even in such cases, if a motive is properly proved, such proof would strengthen the prosecution case and fortify the court in its ultimate conclusion (Relied upon Bipin Kumar Mondal vs State of West Bengal, AIR 2010 Supreme Court 3638).

51. In the present case, it is established on record that deceased was notorious in nature and used to threaten and extort from the fellow inmates. It is an admitted position that accused Arun and Srikant Rama Swamy were on bitter and acrimonious terms. There were fights between Arun and deceased Srikant Rama CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 64 of 79 Swamy on 12.05.2021 and 13.05.2021, which were recent to the incident in question.

52. In the deposition of PW-3 Sumit Baliyan, warder of Jail No.2, it is proved that accused Arun and Ganpat moved joint application for change of their jail as they were being harassed by deceased Srikant Rama Swamy @ Appu. Mark PW3/A is an application written by Arun shows that accused Arun was being beaten and threatened by deceased Srikant Rama Swamy @ Appu and therefore, he requested for change of the jail. PW-10 R. N. Meena, Deputy Superintendent has also confirmed in his testimony, the factum of the request letter received from accused Arun and taking action on the

same. The barrack of accused Arun was shifted from barrack no.4 to barrack no.6. Although inconsistent suggestions have been given to PW-3 that no such application was moved by Arun or that he orally requested for change of ward and also inconsistent suggestion was given to PW-10 that Arun never moved any such application complaining about conduct of Srikant but accused Arun himself in his statement under Section 313 Cr.P.C admitted that on his application, he was moved to barrack no.6 in the night of 13.05.2021 and deceased Srikant got angry for moving the application for change of barrack. The punishment ticket Ex.PW10/E goes on to show that deceased Srikant used to violate prison rules and he misbehaved with the search team of the jail officials and he used to trouble the jail staff as well as the fellow inmates. From the above facts, it is clear that Srikant Rama Swamy (deceased) had notorious and quarrelsome nature and he used to trouble the jail staff as well as fellow inmates. The CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 65 of 79 defence during the cross-examination of prosecution witnesses has put such questions thereby admitting that Srikant was addicted to drugs and used to threaten and assault other inmates.

53. Accused Arun, therefore, was carrying a grudge against Srikant Rama Swamy and after the change of his barrack, he along with other accused decided to take revenge and for this purpose removed cricket bats from the guard room and concealed the same in the ward. At the available opportunity, accused persons in complicity and concert carried out the assault upon Srikant Rama Swamy. Therefore, in the present case, the motive of the accused persons to commit the offence is established.

INQUEST PROCEEDINGS

54. The inquest proceedings are conducted under Section 176 of Code of Criminal Procedure in case of custodial death. The inquest proceedings were conducted by Ld. Magistrate PW-26 Ms.Anjani Mahajan. In the inquest report dated 07.11.2022 (part of Ex.PW26/DA) , it has been concluded that deceased / prisoner Srikant Rama Swamy expired on 14.05.2021 due to shock as a result of multiple injuries to the head, both the upper limbs and both the lower limbs consequent to blunt force impact and foul play in his death cannot be ruled out.

55. During the inquiry proceedings, statements of all the accused persons were recorded by Ld. Magistrate in her own handwriting vide Ex.CW13/A, Ex.CW/15A, Ex.CW18/A and Ex.CW19/A (part of Ex.PW26/DA). In his statement, accused Arun has clearly admitted that Srikant @ Appu used to torture him and threaten to kill him by showing knife. In the morning of CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 66 of 79 14.05.2021, when he (Arun) went to freshen-up, Appu held him and took him inside. Appu had kept a bat there. Appu attacked him on his head with a blade and at that time he picked up the bat and hit Appu on his legs and hands in self defence. Similarly, accused Akash stated in his statement that Appu had a knife and the boy lodged in his barrack, had a bat. Akash claimed having intervened to stop the fight with two other boys. Accused Ganpat in his statement, Ex.CW18/A claimed that when he found a fight going on between Appu and the injured

boy, they intervened to stop the fight. Accused Kishan also admitted having intervened to save the injured boy (Arun). Other inmate Prince Chauhan (PW-14) vide his statement Ex.CW21/A admitted that on the day of incident firstly Srikant attacked Arun and thereafter Arun brought the bat and ran after him.

56. The above statements were recorded by Ld. Magistrate shortly after the incident. The statements are consistent to the effect that fight ensued between deceased Srikant Rama Swamy and accused Arun in which deceased was assaulted and sustained injuries. The statements made by accused persons which they confirmed on oath while appearing before Ld. Magistrate at subsequent stage during the inquest proceedings, strengthens the case of the prosecution. The contents of the inquest proceedings are important as they rule out the version of the defence that Srikant @ Appu was assaulted or killed by jail authorities.

INVESTIGATION

57. The conduct of the investigation in cases involving serious offences assume importance as any lapse would vitiate the case.

CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 67 of 79 The investigating officers of the present case are PW-24 Kavish Lakra, PW-25 Inspector Praveen and PW-31 Inspector Pankaj Vats. The initial and crucial investigation was carried out by SI Kavish Lakra. He got the case FIR registered at the earliest opportunity. He visited the hospital as well as the crime spot and lifted the crucial evidence. He also seized the weapon of offence i.e. cricket bats. The statements of witnesses were recorded. Similarly PW-25 Inspector Praveen Chauhan supervised the investigation and also visited the crime spot. Ld. Magistrate was informed and inquest proceedings were got conducted. The accused persons were arrested and their medical examination was done.

58. By virtue of the orders of Hon'ble High Court dated 20.07.2021 the investigation was transferred to CBI. PW-31 Inspector Pankaj Vats, CBI conducted further investigation. The opinion from expert medical board was ascertained in order to clarify the doubts. The relevant documents were collected by PW-31. During cross-examination of above witnesses, the defence has failed to point out any lapse committed by the officers during the investigation. In my opinion, investigation was properly conducted and all the investigating officers have performed their duties properly by carrying out the necessary steps with precision. There is nothing on record to suggest that investigation was conducted in any unfair or biased manner.

DEFENCE PLEAS:-

> 59. The main defence pleaded by the accused persons has been that deceased was assaulted and killed by jail officials and CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 68 of 79 particularly under the directions of Deputy Superintendent R. N. Meena. Defence has relied upon DD No.41A which was recorded at the instance of UTP Vikas @ Aloo. The defence has further pointed out the testimony of PW-1 Lalit Kumar wherein he admitted during cross-examination that there was no visible injury on the body of the deceased. PW-4 Kripal Singh has also admitted in his statement there was no visible injury on the body of the deceased. The defence further pointed out to the cross-

examination of PW-19 Praveen Kumar whereby he stated that he did not notice any bleeding on the body of the deceased.

60. The question has been raised that at the time of alleged fight, when accused were separated from deceased, there were no injuries on the body of deceased, so much so that he was fine and there was no need to even take him to dispensary. According to the defence, the jail officials infact assaulted Srikant when they again went to carry out search at his barrack no.4, at about 9.00 a.m. The specific suggestions have been given to the witnesses to the effect that deceased was assaulted by the jail staff whereby he received fatal injuries and that the accused persons were not involved in the incident.

61. On careful examination of the facts and circumstances of the case, as evident from the record, I am of the opinion that defence has failed to prove these assertions by way of evidence. The prosecution, on the other hand, has been able to bring ample evidence on record to show that injuries were sustained by Srikant Rama Swamy due to assault at the hands of the accused persons. The injuries have been noted in the jail dispensary CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 69 of 79 medical report Ex.PW6/A by PW-6 Dr. Vikram Pratihast and also in the referral slip Ex.PW6/B. Also in the inquest proceedings conducted by Ld. Magistrate whereby she examined the dead body of the deceased vide Ex.PW26/A, the visible injuries were found. The deceased was wearing clothes and his clothes were removed at that time for the purposes of finding visible injuries. In the postmortem report, the presence of multiple injuries all over the body have been specifically noted, which were total 39 in number.

62. It is also true that PW-1 Lalit Kumar, PW-4 Kripal Singh and PW-19 Praveen Kumar have deposed about no visible injuries on the body of Srikant Rama Swamy after the assault but it could be due to the fact that Srikant Rama Swamy was wearing full clothes and his body was so covered with clothes. It also could be due to lack of keen observation by the witnesses in the particular circumstances whereby they concentrated on the visible injury sustained by accused Arun and after separating the accused and the deceased they further focused on managing the situation. It is also true that vide Ex.PW2/A, a PCR call was received whereby the caller informed that there has been murder inside the jail at the instance of Deputy Superintendent R. N. Meena. However it is admitted by PW-29 Vikas @ Aloo who was also lodged in jail and was having friendly relations with deceased Srikant Rama Swamy that the PCR call was made by him and he gave false information therein. PW-29 Vikas @ Aloo admitted that he had not witnessed the incident in question. No substantial cross examination of this witness was done to challenge his testimony by the defence. In this way,

the recording CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 70 of 79 of DD No.41A at the instance of PW-29, cannot be relied upon to disbelieve the case of the prosecution.

63. It is important to note that during inquiry by Ld. Magistrate, accused Arun admitted that he hit Srikant @ Appu on his legs and hands in self defence by means of bat. Accused Akash has also admitted that the boy during the fight with Appu, had a bat. The other two accused also admitted the factum of fight between Appu and Arun (injured boy) and having intervened. In this way, the accused persons have admitted their involvement although they have tried to claim innocence. Their statements were recorded by the Ld. Magistrate shortly after the incident and at that time, none of the accused persons came out with the plea that Srikant Rama Swamy @ Appu was assaulted or killed by jail officials. Therefore, it is clear that defence taken by the accused persons during the trial is only an afterthought.

64. Throughout the present trial, during the examination of the prosecution witnesses, at no point of time, accused persons came out with any plea that they assaulted the deceased in self defence or that the deceased was assaulted during a sudden fight or on account of grave and sudden provocation. It is not the plea of the accused persons that they lost their power of self control from hostile actions of Srikant Rama Swamy and therefore, the exceptions under Section 300 IPC are not claimed by the accused persons and benefit thereof cannot be extended.

65. On behalf of accused persons, it is argued that prosecution has failed to bring on record the important witnesses as other inmates present at the time of incident, have not been examined.

CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 71 of 79 Also, Munshi Sunil and Assistant Superintendent Sudama Mehto and Tamil Nadu Special Police personnels who were admittedly present at the ward have not been examined qua the incident. It is also pointed out that there are variations and contradictions in the statements of prosecution witnesses which cast a shadow of doubt on the prosecution story.

66. The time honoured principle is that evidence has to be weighed and not counted. The test is whether the evidence has a ring of truth, is cogent, credible and trustworthy. In Namdeo vs State of Maharashtra, (2007) 14 SCC 150, the Hon'ble Supreme court has observed that it is quality and not the quantity of evidence which is necessary for proving or disproving a fact. The legal system has laid emphasis on value, weight and quality of evidence rather than on quantity, multiplicity or plurality of witnesses.

67. It is settled principle of law that prosecution is required to bring clear and convincing evidence to prove its case beyond reasonable doubt but it does not mean evidence or proof to rigid mathematical precision. The evidence is to be examined as a whole and not with a narrow view to find flaws and lapses. The reasons and effects of contradictions and improvements in the statements of witnesses has been beautifully described by Hon'ble Supreme Court in Bharwada Bhoginbhai

Hirjibhai vs. State of Gujarat, AIR 1983 SC 753. I would like to reproduce the same as under:

> CBI vs Kishan Sresth & Ors.
>
> CBI/39/2022 Page no. 72 of 79 "(1) By and large a witness cannot be expected to possess a photographic memory and to recall the details of an incident. It is not as if a video tape is replayed on the mental screen.
>
> (2) ordinarily it so happens that a witness is overtaken by events. The witness could not have anticipated the occurrence which so often has an element of surprise.

The mental faculties therefore cannot be expected to be attuned to absorb the details.

(3) The powers of observation differ from person to person. What one may notice, another may not. An object or movement might emboss its image on one person's mind whereas it might go unnoticed on the part of another.

(4) By and large people cannot accurately recall a conversation and reproduce the very words used by them or heard by them. They can only recall the main purport of the conversation. It is unrealistic to expect a witness to be a human tape recorder.

(5) In regard to exact time of an incident, or the time duration of an occurrence, usually, people make their estimates by guess work on the spur of the moment 1.1 at the time of interrogation. And one cannot expect people to make very precise or reliable estimates in such matters. Again, it depends on the time-sense of individuals which varies from person to person. (6) Ordinarily a witness cannot be expected to recall accurately the sequence of events which take place in rapid succession or in a short time span. A witness is liable to get confused, or mixed up when interrogated later on.

(7) A witness, though wholly truthful, is liable to be overawed by the court atmosphere and the piercing CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 73 of 79 cross examination made by counsel and out of nervousness mix up facts, get confused regarding sequence of events, or fill up details from imagination on the spur of the moment. The subconscious mind of the witness sometimes so operates on account of the fear of looking foolish or being disbelieved though the witness is giving a truthful and honest account of the occurrence witnessed by him Perhaps it is a sort of a psychological defence mechanism activated on the spur of the moment."

68. On proper analysis, I find that witnesses have been clear in their depositions. Each witness deposed about specific role assigned to him in the case. Some variations are natural and bound to occur in the process of recording evidence but are not material so as to affect the credibility of prosecution case. It is convenient to point out lapses in depositions and documentary evidence, but lapses must be serious to indicate that prosecution case is absolutely baseless. The evidence has to

be weighed and not counted, therefore number of witnesses examined does not matter if otherwise evidence is strong and convincing.

69. In the present case, quality of evidence given by eye witnesses is credible and their presence at the spot is natural being official witnesses on duty. During the cross-examination of these witnesses nothing had transpired for which their evidence can be discarded. The ocular evidence is also supported by medical and circumstantial evidence being consistent with each other.

CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 74 of 79

70. Also, on analysing the testimony of DW-1 Ajay s/o Dadidh Pal, it is clear that he is deposing under the influence of accused persons. DW-1 has put forth a different version that jail officials had scuffled with Srikant and then took him to jail dispensary on wheelchair between 7.30 to 8.00 a.m. The timings as per dispensary record is 9.15 a.m. when Srikant was brought there. Nowhere the witness (DW-1) has stated that jail officials were armed with blunt weapons or that they assaulted Srikant thereby inflicting injuries on him. DW-1 has only spoken about the scuffle. Also DW-1 has admitted having given statement during the investigation without any pressure and was duly confronted with the same Ex.DW1/PA. The defence pleas to the effect that Srikant was killed by jail authorities stand duly demolished by way of admission of accused persons during the inquest proceedings. I do not find the testimony of DW-1 reliable.

71. The next contention raised on behalf of defence has been that best evidence is withheld by the prosecution as CCTV cameras were installed at and around the crime scene, but video footage has not been produced, hence adverse inference must be drawn. The prosecution, however, argued that CCTV cameras were not functional at the place of incident. One available video footage Ex.P-16 was duly handed over along with certificate under Section 65 B of Evidence Act.

72. Regarding CCTV cameras, the witnesses PW-10 R.N. Meena, PW-18 Pradeep Sharma and PW-21 Adeshwar Kant have consistently maintained the version that process of installation of CCTV cameras was in progress and at the crime scene no CCTV CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 75 of 79 was functional. It is also evident from the inquest report dated 07.11.2022 that Ld. Magistrate visited the spot of occurrence and found two CCTV cameras at barrack no.4 but reportedly the cameras were not operational. No video footage was available or captured as to the incident and the requisite certificate was handed over by Pradeep Sharma (PW-18). Also, before the High Court of Delhi during Writ Petition No. 1105/2021 relating to the present case, the statement was made by Director General (Prisons) that process of installation of cameras got delayed due to Covid-19 and no CCTV footage of the incident was available.

73. In view of the statements made by jail officers who were responsible public servants, it is clear that no CCTV footage of the incident existed, hence it cannot be said that best available evidence is withheld.

74. The involvement of Deputy Superintendent R. N. Meena has been contended by the defence but no evidence could be brought on this aspect. Although Deputy Superintendent R. N.Meena was named in the information given by Vikas @ Aloo (PW-29) and also similar feelings were expressed by parents of the deceased during the inquest before Magistrate, but no witness has been examined to prove this allegation. Rather, accused persons themselves admitted during the inquest that Srikant @ Appu was assaulted by Arun with cricket bat on 14.05.2021. The possibility of involvement of Deputy Superintendent R. N. Meena stands ruled out.

CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 76 of 79

75. On proper consideration of the defence pleas, I conclude that accused persons have failed to establish their alleged innocence.

CONCLUSION:-

76. 'Culpable Homicide' is defined under Section 299 IPC while 'murder' is defined under Section 300 IPC. There is very thin line distinction between the above two provisions. 'Culpable Homicide' is genus and 'murder' is its specie. All 'murder' is 'culpable homicide' but not vice versa. The offence would be murder, unless the act falls within any of the exceptions given in Section 300 IPC, in which case the offence would be culpable homicide not amounting to murder.

77. The distinction lies between a bodily injury likely to cause death and a bodily injury sufficient in the ordinary course of nature to cause death. This distinction is fine but real and if overlooked, may result in miscarriage of justice. The difference between clause (b) of Section 299 and clause (3) of Section 300 is one of the degree of probability of death resulting from the intended bodily injury. To put it more broadly, it is the degree of probability of death which determines whether a culpable homicide is one of the gravest, medium or lowest degree. It is culpable homicide where death must have been known to be a probable result. It is murder where it must have been known to be the most probable result.

78. In the present case, it is evident that multiple bodily injuries (contusions, abrasions and contused lacerations) were inflicted upon Srikant which caused internal bleeding in CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 77 of 79 underlying tissues and muscles of all four limbs. Internal bleeding was also found in brain and abdominal tissue. It is therefore clear that Srikant @ Appu was assaulted with full force on vital parts of his body showing intention on the part of the accused persons to cause his death.

79. The assault was executed by means of cricket bats which were not easily available inside the jail premises particularly to the inmates. The accused persons gained access and laid hands on the cricket bats from the guardroom and could use the same for assault which shows that the crime has

been committed with premeditation.

80. In view of the above detailed discussion, I hold that accused persons Kishan Sresth, Ganpat @ Kunal, Arun @ Mandva, Akash @ Hanny in furtherance of their common intention caused bodily injuries to Srikant Rama Swamy @ Appu sufficient in the ordinary course of nature to cause death and thereby committed the offence of murder punishable under Section 302 read with Section 34 IPC. All the above accused persons are accordingly convicted and held guilty under Section 302/34 IPC.

81. In terms of the judgment of High court of Delhi, Sunny vs State GNCT of Delhi, Criminal Appeal No. 353/2020 dated 27.11.2020, the issue of award of compensation arises under Section 357 and 357A of Cr.P.C. Before awarding compensation, it is required to ascertain the financial capacity of accused persons. Accordingly, it is directed that all the accused persons to CBI vs Kishan Sresth & Ors.

CBI/39/2022 Page no. 78 of 79 file affidavit of their assets and income in the format of Annexure A as provided in the said judgment, within a period of 10 days.

82. The State/ Prosecution would also disclose on affidavit the expenses incurred on prosecution along with supporting documents, if any.

83. The matter be listed for filing affidavits on 28.05.2024 and for hearing on sentence on 05.06.2024. Meanwhile, on filing of affidavits, Victim Impact Report (VIR) be called through Secretary, DLSA, Rouse Avenue in the format (Annexure B-1) provided in the above mentioned judgment.

Announced in the open court

on the 17th day of May 2024

ANJU BAJAJ CHANDNA
by ANJU BAJAJ CHANDNA
Date: 2024.05.17 14:04:47 +0530

(Anju Bajaj Chandna)
Principal District & Sessions Judge-cum-Special Judge (PC Act) (CBI),
Rouse Avenue District Court
17.05.2024

CBI vs Kishan Sresth & Ors.
CBI/39/2022 Page no. 79 of 79